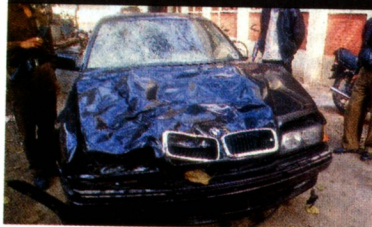


THE STREETS OF LOST FOOTSTEPS

HOW TO HANDLE SERIOUS CRIMES

The 1999 case of rich youngster Sanjeev Nanda running his BMW over six people exposed how easily serious offenders could evade strict punishment under the law, kickstarting the legal debate.



PRAMOD PUSHKARNA

cent are binge-drinkers. What's more, 98 per cent feel confident about driving after drinking.

Pub-city Bangalore saw a sharp climb in such offences from 9,900 in 2001 to over 33,000 in 2005. In Mumbai, 12,528 inebriated drivers were booked last year, with fines adding up to Rs 2 crore. In Delhi, 45 per cent drivers are found to consume alcohol and one-third of the injured drive two-wheelers, reports the Directorate of Prohibition. DCP Rupender Kumar, whose forces patrol the roads outside popular youth haunts in south and west Delhi, notices a doubling of the crime in the city: "Between January and April this year, we caught 1,031 people. Last year, the count was 501 during this period."

"The existing laws are hopelessly ambiguous," says criminal lawyer Ram Jethmalani. Although drunken driving is an "unforgivable crime", unlike in the West it's not a serious statutory offence here. "The maximum imprisonment of six months is rare, the fine of up to Rs 2,000 laughable and the conviction rate abysmal," he adds. But with policymakers, lawyers, civic activists and think tanks locking horns over the issue, citizens are now getting a taste of things to come. Vilas Pawale of Mumbai still can't believe that he served a prison term for drunken driving. Caught while driving back home after a couple of beers, he was stopped by the Mumbai traffic police.

MANDAR DEODHAR



THE BOOZE TOLL: One-fifth of road traffic injuries are linked to alcohol



BHASKAR PAUL

WHERE TO FIX SUCH CASES

Under the IPC, there are two types of offences, intended and unintended. To which does drunken driving belong? As lawyers debated, actor Salman Khan escaped harsher punishment despite mowing down several people in 2002.

Before he knew it, the 38-year-old, who works with a travel agency, was lodged in Thane jail for five days with hardened criminals.

"The crux of the debate in legal circles is where we can fit in such offences," points out Rebecca John, criminal counsel with the Delhi High Court. Under the Indian Penal Code (IPC), there are two types of offences—intended and unintended. To which does drunken driving belong? "Presently, Section 304A of the IPC covers death by rash and negligent act, a bailable offence with a maximum penalty of two years," John explains, adding, "But to cases of drunken driving accidents you must be able to attribute knowledge—that one drives in such a state knowing it can cause death and

injury." After a spate of high-profile drunken driving cases in recent years, the IPC was amended to take this into account and Section 304 (II)—culpable homicide not amounting to murder and punishable up to 10 years—came about. "If the parliamentary recommendations hold, drunken driving per se will become a statutory and severe offence in India, as in the West," John says.

Senior advocate R.K. Anand, the defence counsel for the infamous BMW case, is not sure, however, that harsher laws will play out. "The laws will also have to take into account the

IS THE VICTIM ALSO AT FAULT?

Some lawyers insist that harsher laws should include the idea of 'contributing negligence'. That is, how far the victim (or a third party) is guilty of a negligent act, without which the accident could not have happened.

idea of 'contributing negligence'—how far the dead or the injured or a third party were guilty of a negligent act, without which the accident could not have happened." That's precisely the argument he used for his client Sanjeev Nanda, who had mowed down six people, including two policemen, in Delhi in 1999. "Simply driving a car at 100 km per hour at a time when no one is expected to be on the road, does not